

Judgment Sheet
IN THE LAHORE HIGH COURT, MULTAN BENCH
MULTAN
(JUDICIAL DEPARTMENT)

Review Application No.34 of 2019

In

I.C.A No.75/2019

Board of Intermediate and Secondary Education Multan & another

Vs

Muhammad Ans, etc.

JUDGMENT

Date of hearing: 03.06.2021

Applicant by: Mr. Muhammad Ali Siddiqui, Advocate.

Respondents by: Mr. Muhammad Aurangzeb Gillani, Advocate.

AHMAD NADEEM ARSHAD, J. Through this review application the applicants i.e, Board of Intermediate & Secondary Education, Multan and another seek review of the consolidated judgment/order dated 05.11.2019 passed by this Court in the titled Intra Court Appeal No.75 of 2019 whereby connected Intra Court Appeal No.152 of 2019 along with 14 others Intra Court Appeals preferred by Board of Intermediate and Secondary Education, Multan (***Multan Board***) and Board of Intermediate and Secondary Education, Sahiwal (***Sahiwal Board***) were dismissed vide orders dated 14.02.2019, 20.02.2019 and 21.02.2019 passed by learned Single Judge in Chambers regarding allowing of the Constitutional petitions filed by the writ petitioners with a direction to both the Boards to regularize their services were upheld.

2. The facts in brevity are that the respondents (*41 writ petitioners*) filed Writ Petition No.1001 of 2019 against the applicants for regularization of their services who were working in the Multan Board as a daily wagers for a considerable time. Similar types of writ petitions were also filed against the Sahiwal Board. All the writ petitions were decided by learned Single Judge in Chamber of this Court vide judgments/orders dated 14.02.2019, 20.02.2019 and 21.02.2019. Against

that judgments/orders sixteen Intra Court Appeals i.e I.C.A Nos.152, 153, 177 & 178 of 2019 (*By Sahiwal Board*) and I.C.A Nos.75, 145, 146, 147, 180, 181, 182, 183, 184, 198, 222 & 223 of 2019 (*By Multan Board*) were preferred. The learned Division Bench of this Court keeping in view that common questions of law and facts were involved decided all these ICAs by a single consolidated judgment/order which was rendered in Intra Court Appeal No.152 of 2019 and by relying upon this judgment/order decided all the above mentioned ICAs by holding that no ground of interference is made out, hence, being devoid of merits are dismissed. Feeling dissatisfied by this judgment/order, the Sahiwal Board moved a Review Application No.37 of 2019 which was later on dismissed as withdrawn vide order dated 20.01.2021 with a permission to avail the remedy before the Hon'ble Supreme Court of Pakistan. Thereafter, the Sahiwal Board filed Civil Petition Nos. 498 to 501 of 2020 before the August Supreme Court of Pakistan which were dismissed on 30.11.2020 as barred by time. Now the Multan Board filed the instant Review Application.

3. Learned counsel appearing on behalf of the applicants stated that the judgment/order under review of learned appellate Court suffers from certain errors of law which are apparent on the face of the record and while differentiating his client's case with the others i.e. Multan Board with the Sahiwal Board he added that following questions of law were not considered and attended by the appellate Court in its judgment/order under review:

- A) Whether the daily wages/contracts/seasonal employees be regularized, without processing them through the test of scrutiny i.e. basic eligibility, qualification, verification of documents and minimum length of service, for the subject posts?
- B) Whether the daily wages/contract/seasonal employees be regularized against the sanctioned posts if the number of daily wages/contract/seasonal employees, who are directed to be regularized, is exceeded than the number of sanctioned posts?

- C) Whether as to what criteria shall be adopted if the number of daily wages/contract/seasonal employees, directed to be regularized, exceeded the total number of sanctioned posts?

And in support of his contentions relied upon the unreported judgment passed by the August Supreme Court of Pakistan in C.P No.301-L to 309-L and 316-L to 318-L of 2019 in the case of Board of Intermediate and Secondary Education by submitting that guidance may be taken while settling the issue. At the end, while concluding his arguments prayed that the judgment/order of the appellate Court dated 05.11.2019 may be reviewed.

4. Upon being confronted and Court query how this review application is maintainable against the same judgment/order of the appellate Court regarding which earlier Review Application No.37 of 2019 of Sahiwal Board had been dismissed as withdrawn vide order dated 20.01.2020 and C.P. No.498 to 501 of 2020 were also dismissed being time barred on 30.11.2020 by the August Supreme Court of Pakistan, learned counsel appearing on behalf of the applicants failed to satisfy this Court.

5. We have heard learned counsel for the applicants and perused the record carefully.

6. Power of review is provided under section 114 and Order XLVII, Rule 1 of Code of Civil Procedure, 1908. Under section 114 CPC a review application is maintainable for enabling the Court to correct the errors. The main aim of the power of review is to prevent injustice being done by a Court and is subject to the limitation provided in clauses (a), (b) and (c) of sub-rule (1) of Order XLVII CPC. For the purpose of appreciation both provisions are being reproduced as under:-

Section 114—Review (1) *Subject as aforesaid, any person considering himself aggrieved--*

(a) *by a decree or order from which an appeal is allowed by this Code, but from which no appeal has been preferred.*

(b) *by a decree or order from which no appeal is allowed by this Code, or*

(c) by a decision on a reference from a Court of Small Causes, may apply for a review of judgment to the Court which passed the decree or made the order, and the Court may make such order thereon as it thinks fit.

(2) Nothing contained in sub-section (1) shall apply to a review of any judgment pronounced or order made by the Supreme Court.”

Order XLVII, Rule 1—Review—Application for review of judgment

(1) Any person considering himself aggrieved---

(a) *by a decree or order from which an appeal is allowed by this Code, but from which no appeal has been preferred,*

(b) *by a decree or order from which no appeal is allowed by this Code, or*

(c) *by a decision on a reference from a Court of Small Causes, and who, from the discovery of new and important matter or evidence which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record, or for any other sufficient reason, desires to obtain a review of the decree passed or order made against him, may apply for a review of judgment to the Court which passed the decree or made the order.*

(2) *A party who is not appealing from a decree or order may apply for a review of judgment notwithstanding the pendency of an appeal by some other party except where the ground of such appeal is common to the applicant and the appellant, or when, being respondent he can present to the Appellate Court the case on which he applies for the review.”*

7. From the combined analysis of the above referred provisions, it becomes crystal clear that one of the most essential requirements for invoking review, jurisdiction of a Court is that important evidence having a material bearing upon the merits of the case and decision thereof was subsequently discovered, which was neither in the possession nor in the knowledge of the aggrieved party before passing of the judgment/order sought to be reviewed and further that the important evidence referred to was in existence when the judgment/order was made. The power of review can only be exercised when an error or mistake is manifestly shown to float on the surface of record, which is so patent that if it allowed to remain intact, would perpetuate illegality and gross injustice.

8. Viewed in the background of the aforesaid principles governing the filing of a review application, when we consider the arguments advanced by the learned counsel for the applicants and the points urged in the review application, it appears that all the points were already raised and discussed in the under review decision of the Intra Court Appeal. Each point raised was exhaustively considered, analyzed and dealt with by learned Division Bench. Categorical findings recorded after careful and conscious appreciation of all pros and cons of the matter and cannot be re-opened with a view to re-appraising the same and for taking a contrary view, which otherwise did not suffer from misconstruction or misappreciation of the law applicable to the facts of the case. Review jurisdiction cannot be invoked as a routine matter or to re-hear a case which has already been decided.

9. It is a settled proposition of law that the points already raised and considered cannot be re-agitated in review jurisdiction. Reliance is placed upon Sh. MEHDI HASSAN Vs PROVINCE OF PUNJAB through Member, Board of Revenue and 5 others (2007 SCMR 755). In para-8 of the judgment it has been observed as under:-

“8. We having heard the learned counsel for the parties at length and perused the record with their assistance have found that the contentions raised by the learned counsel in support of this petition have been exhaustively dealt with in the judgment under review. This is settled law that the points already raised and considered before the Court, cannot be re-agitated in review jurisdiction which is confined to the extent of patent error or a mistake floating on the face of record which if not corrected may perpetuate illegality and injustice. The mere fact that another view of the matter was possible or the conclusion drawn in the judgment was wrong, would not be a valid ground to review the judgment unless it is shown that the Court has failed to consider an important question of law. The learned counsel has not been able to point out any such error of law in the judgment or interference in the review jurisdiction.”

10. The scope of review is very limited. The judgment can be reviewed only when the error is apparent on the face of the record and that it must be so manifest, so clear, that no Court could permit such an error to remain on record. Reliance is placed on MAHMOOD HUSSAIN LARK and others Versus MUSLIM COMMERCIAL BANK LIMITED and others (2010 SCMR 1036) wherein it has been observed as under:-

“We have given due consideration to the arguments advanced by the petitioners in person, gone through the judgment sought to be reviewed. We are of the view that before an error can be a ground of review, it is necessary, that it must be one which is apparent on the face of the record and that it must be so manifest, so clear, that no Court could permit such an error to remain on record. Incorrectness of a conclusion arrived at after a conscious perusal of record and in depth examination of evidence cannot be made a ground for review because to permit a review on the ground of incorrectness would amount to granting the Court jurisdiction of re-hearing appeals against its own judgment.”

In the case of Syed Wajihul Hassan Zaidi v. Government of the Punjab and others (PLD 2004 SC 801), it was held:---

“Every judgment pronounced by Supreme Court is presumed to be final, solemn and well considered covering all points arising out of the case. If the Court has taken a conscious and deliberate decision on a point of fact or law, a review petition will not be competent. The circumstance that the view canvassed in the review petition is more reasonable than the view already accepted by the Court in the impugned order of which review is sought would not be sufficient to maintain a review petition. Likewise, factum that a material irregularity was committed by the Court would not be adequate enough to warrant a review of the judgment unless the material irregularity be of a nature so as to convert the process of acting in aid of justice to a process of gross injustice. In such eventuality a review petition would be competent. Similarly, fact that the conclusion drawn in a judgment is wrong would not warrant review of the same but if the conclusion is wrong because something manifest has been ignored by the Court or the Court has not considered an important aspect of the matter, a review petition would lie. Furthermore, principle of law is well recognized that Supreme Court would not exercise the power of review as a routine matter to rehear a case already decided but the same can be pressed into service where a glaring omission on the face of record or patent error has crept the judgment by judicial fallibility.”

11. The review also cannot be allowed on the discovery of some new material if such material was available at the time of trial, the appeal or the revision as the case may be. The review cannot be made a pretext for re-arguing whole case and matter cannot be re-opened under the garb of review application. Reliance can be taken in the case titled ABDUL HAKEEM and another versus KHALID WAZIR (2003 SCMR 1501). In para-7 of the said judgment it has been observed as under:-

“7. Learned counsel relied on Abdul Ghaffar v. Asghar Ali (PLD 1998 SC 363) and asserted that review under Order XLVII, Rule 1, C.P.C. could be allowed only when some new and important matter or evidence has been discovered which, after exercise of due diligence, was not within his knowledge or could not be produced. However, that an order could be reviewed on account of some mistake or error apparent on the face of

record. He went on to submit that the equality of the right of vendee, if at all, was or should have been in the knowledge of the vendee right from day one. That it should have been asserted before the Court of original jurisdiction, if not, before the First Appellate Court and at the most before the Court of revisional jurisdiction. Having not agitated this point before all the forums, the vendees cannot derive advantage through the process of review. Order 47, Rule 1 of the C.P.C. clearly lays down that review proceedings cannot partake re-hearing of a decided case. Review also cannot be allowed on the ground of discovery of some new material if such material was available at the time of hearing of the trial, the appeal or the revision, as the case may be. A ground not urged or raised at such earlier stages cannot be allowed to be raised in review proceedings.”

The Hon’ble Supreme Court of Pakistan in case titled MAJID MAHMOOD versus MUHAMMAD SHAFI (2008 SCMR 554) wherein it has been held as under:-

“8. The exercise of review jurisdiction does not mean a rehearing of the matter and as finality attaches to the order, a decision, even though it is erroneous per se, would not be a ground to justify its review. Accordingly, in keeping with the limits of the review jurisdiction, it is futile to reconsider the submissions, which converge on the merits of the decision. It needs no reiteration that before an error can be a ground for review, it is necessary that it must be one which is apparent on the face of the record, that is, it must be so manifest, so clear that no Court could permit such an error to remain on the record. It may be an error of fact or of law, but it must be an error which is self evident and floating on the surface and does not require any elaborate discussion or process of ratiocination. It is not denied that if the Court has taken a conscious and deliberate decision on a point of law or fact while disposing of a petition or an appeal, review of such judgment or order cannot be obtained on the grounds that the Court took an erroneous view or that another view on reconsideration is possible. Review also cannot be allowed on the ground of discovery of some new material, if such material was available at the time of hearing of appeal or petition but not produced.”

The Hon’ble Supreme Court of Pakistan in the case titled ALI AHMAD versus MUHAMMAD IQBAL (2009 SCMR 394) has observed as under:-

“A review by its very nature was not an appeal or rehearing merely on the ground that one party or another conceived himself to be dissatisfied with the decision of the Court”

12. Before parting with this judgment it is further pointed out that against the same judgment/order, the Sahiwal Board moved a review application which was later on dismissed as withdrawn vide order dated 20.01.2021 in order to avail the remedy before the Hon’ble Supreme Court of Pakistan. Therefore, the Sahiwal Board filed Civil Petition Nos. 498 to 501 of 2020 before the August Supreme Court of Pakistan which were dismissed on 30.11.2020 as barred by time.

13. In view of foregoing discussion, we are unanimous that the instant review application is highly mis-conceived and baseless which is hereby **dismissed**.

(MIRZA VIQAS RAUF)
JUDGE

(AHMAD NADEEM ARSHAD)
JUDGE

Saeed*

APPROVED FOR REPORTING

JUDGE